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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON Defendant.	PROFFER OF FACTS REGARDING CLOSURE OF PORTIONS OF EVIDENTIARY HEARING ON MOTION TO DISQUALIFY UCAO Case No. 251403576 JUDGE TONY F. GRAF
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Counsel for the State has conferred with defense counsel and, for the purposes of closing the courtroom during the evidentiary hearing on Defendant's motion to disqualify the UCAO for the testimony of Prosecutor A and Adult Child only, defense counsel does not object to the following proffer. Consistent with defense counsel's original request to close the hearing on the motion to disqualify, defense counsel agrees that in order to protect the personal privacy and safety of witnesses Prosecutor A and Adult Child, their testimony should be conducted in a closed

session. These interests are contemplated in Utah Rule of Judicial Administration 4-202(2)(A), (B) and (E).¹

Proffer of facts:

1. Prosecutor A is a long-time prosecutor. Over the course of his career he has prosecuted violent crimes, including many homicides. Over the course of his career, he has received threats for his work as a prosecutor.
2. Prosecutor A received threats for his work as recently as 2025. The defendant in that case, which is not State v. Robinson, made efforts to collect personal information, including social security numbers and property titles of Prosecutor A, law enforcement, and their family members to disseminate on the dark web. In letters, the defendant in that case specifically mentioned *Prosecutor A by name as well as Prosecutor A's family members by name*, calling Prosecutor A his “#1” priority target. The defendant in that case communicated what he believed was prosecutor A’s address and phone number to an acquaintance instructing that acquaintance to work with others to use this information to target Prosecutor A by placing liens on his property, publishing personal information on the dark web, and engage in spoofing and phishing scams against him. In one letter, after listing Prosecutor A’s name, and purported family members’ names, the defendant in that case stated, “we need to have maximum exposure on [Prosecutor A].” He continued, “we need to prepare all UCC1 filings [liens on property] against these pieces of shit. Also comb

¹ The Court previously denied the motion to close the entirety of the Evidentiary Hearing on the Motion to Disqualify but indicated it would consider a motion to close parts of the hearing. The State intends to move to close the testimony of Prosecutor A and Adult Child. Counsel for Defendant and counsel for the media previously stipulated to the closure of the hearing entirely. The State believes those stipulations will persist relating to the State’s intended motions to close the indicated portions of the hearing.

social media and get on reaching out to Tyler Robinson's supporters online and post this letter [which contained Prosecutor A's and family members' purported names and phone number and address]." The defendant in that case also wrote, "Please go on a DW [dark web] forum, to expose this intel to all who believe in Tyler Robinson's set up and innocence, and post this letter to forum chat groups about [Prosecutor A's name]." In another letter, the defendant in that case wrote to his contact: "can you forward this for me to the DW [dark web]" and then he listed Prosecutor A's name, his family members' purported names, his purported address and purported cell phone number.

3. The defendant in that case has carried out some of his threats by attacking law enforcement officers and causing significant bodily injury to at least one law enforcement officer.
4. The case of State v. Robinson has generated great publicity. Some people have threatened retaliation against Mr. Robinson while others have applauded the killing of Charlie Kirk.
5. Many witnesses in this case have received threats because of their involvement. Some have relocated to avoid these threats. Many have deleted online accounts and changed usernames and social media handles.
6. Members of Charlie Kirk's security team have reported threats, doxing – the publication of personal information online for harassment purposes, and risks to them since Charlie Kirk's murder.
7. Defense counsel has hired private security due to the danger this case has caused counsel.
8. The UCAO has increased its security protocols due to the risks this case has generated.

9. The Utah County Sheriff's Office has increased its security protocols in transport and custody of the defendant during court hearings and as it relates to the security of the courthouse.

Dated this 2nd day of February, 2026

/s/ Ryan McBride
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on February 2, 2026, I filed the foregoing through the court's electronic filing system, which served a copy on all counsel of record.

/s/ Ryan McBride